LEXUS | NORTHWEST LEXUS

# USED MOTOR VEHICLE PURCHASE AGREEMENT

HST# **R877791210** | DEALER REG# | DESKIT CUST# **24954801** | DMS CUST# **71985**

**6755651 /70601** DEAL#

**159024P** STOCK#

F&I Manager:

2280 Queen St E, Brampton, ON, L6S 5X9, Tel:9054941000 Fax:905-494-0990

BUYER / CO-BUYER
PERFORMANCE BASED STYLE LTD / REID GEORGE RUBENSTEIN
55 Raintree Crescent
Richmond Hill ON L4E 3T6
Cell Phone: (437) 296-2772
LIC. 204915166

DATE OF SALE
Feb 20 2026
INSURANCE

POLICY NO.

EXP. DATE

| YEAR | TYPE | MAKE | MODEL | MFR MOD CODE |
|---|---|---|---|---|
| 2018 | Used | Lexus | NX | BARBZT |

TRIM: NX 300 Auto
PKG: F
EXT. COLOR: Ultra White
INT. COLOR: Circuit Red, F Sport Nuluxe Seat Surfaces
INTERIOR TRIM CODE: N
VIN: JTJBARBZ5J2159024
IN SERVICE DATE: Mar 12 2018
TOTAL DIST. TRAV.: 175675 KMs
DELIVERY DATE: Feb 25 2026
VEHICLE CONDITION: As-Is

I, the purchaser, **PERFORMANCE BASED STYLE LTD**, agree to purchase the following vehicle from you, the dealer, on the terms set out in this agreement including the vehicle information document which forms part of this agreement.

INITIALS

| | | |
|---|---|---|
| **VEHICLE AND OPTIONS** | | |
| Retail Price | | $22,498.00 |
| Adjustment | | -$1,498.00 |
| **PRICE INFORMATION** | | |
| Total Vehicle Price | | $21,000.00 |
| Carfax Report | | $60.55 |
| **Subtotal** | | **$21,060.55** |
| HST | 13% | $2,737.87 |
| **Subtotal** | | **$23,798.42** |
| License Fee | | $32.00 |
| **Subtotal** | | **$32.00** |
| **DOWN PAYMENT** | | |
| Deposit | | $2,500.00 |
| **TOTAL** | | **$21,330.42** |

## Sales Final

**Please review the entire contract, including all attached statements, before signing. This contract is final and binding once you have signed it unless the motor vehicle dealer has failed to comply with certain legal obligations.**

INITIALS

**Privacy Statement:** By signing this contract you consent to the dealer contacting you in the future to the sharing of information with associated businesses so that they may provide you with timely information about their services. You may withdraw your consent in writing at any time.

INITIALS

**Incentive:** The dealership receives a fee from the institution that is providing my financing.

**Financing Information:** I confirm that the financial institution providing financing for the purchase of this vehicle has provided me with the initial disclosure statement regarding financial information as required under the Consumer Protection Act, 2002.

INITIALS

**I have received the vehicle information required under the Motor Vehicle Dealers Act, 2002.**

**Service Plan:** This vehicle was sold with a service plan? YES / NO

**REMARKS**

I agree that if the appropriate space is initialed by me, the vehicle is sold AS IS and is not represented as being in a road worthy condition, mechanically sound or maintained at any guaranteed level of quality. The vehicle may not be fit for use as a means of transportation and may require substantial repairs at my expense. I understand there are no warranties implied or given by the dealer. _____ Purchaser's Initials

This vehicle to be acquired for registration in Canada only.
I acknowledge having read all the terms of the contract, including the pages that make up this contract. I understand these terms make up the entire contract.

PERFORMANCE BASED STYLE LTD Signature

REID GEORGE RUBENSTEIN Signature

Signature
Authorize Rep #

Aticus Sattar
Prov License 5474796

## Safety Standards Certificate

**A Safety Standards Certificate is only an indication that the motor vehicle met certain basic standards of vehicle safety on the date of inspection.**

## Vehicle Sold "AS-IS"

**The motor vehicle sold under this contract is being sold “as is” and is not represented as being in road worthy condition, mechanically sound or maintained at any guaranteed level of quality. The vehicle may not be fit for use as a means of transportation and may require substantial repairs at the buyer’s expense. It may not be possible to register the vehicle to be driven in its current condition.**

**INITIAL** _____

## Important Information Respecting Motor Vehicle Sales

## Ontario Motor Vehicle Industry Council

**In case of any concerns with this sale, you should first contact your motor vehicle dealer. If concerns persist, you may contact the Ontario Motor Vehicle Industry Council as the administrative authority designated for administering the Motor Vehicle Dealers Act, 2002.**

**You may be eligible for compensation from the Motor Vehicle Dealers Compensation Fund if you suffer a financial loss from this trade and if your dealer is unable or unwilling to make good on the loss.**

**You may have additional rights at law.**

**Telephone: 416-226-4500 or 1-800-943-6002**

Ontario Motor Vehicle Industry Council

Conseil ontarien de commerce des véhicules automobiles

**Web site: www.omvic.on.ca**

## Canadian Motor Vehicle Arbitration Plan

**The Canadian Motor Vehicle Arbitration Plan (CAMVAP) allows consumers to resolve disputes with participating manufacturers about possible defects in a vehicle’s assembly or materials, or how the manufacturer is applying or administering its new vehicle warranty. Please contact CAMVAP for more information about the program and to see if your vehicle qualifies.**

# DISCLOSURES FOR A USED VEHICLE

**VIN:** JTJBARBZ5J2159024

1. Odometer Information

O_____ The Vehicle is used, and has been driven a total distance of _____ .

O_____ We cannot determine the total distance driven by the Vehicle prior to _____. Thus, we believe the total distance driven may be higher than _____ , which is the distance driven as of the date specified.

O_____ We do not know the total distance driven by the Vehicle. The total distance may be substantially higher than the reading shown on the odometer.

O_____ The Vehicle has a broken or faulty odometer.

O_____ The Vehicle's odometer has been replaced.

O_____ The Vehicle's odometer has been rolled back.

O_____ The odometer of the Motor Vehicle accurately records the true distance traveled.

2. Prior Use

O_____ The Vehicle was previously rented on a daily rental basis, unless the vehicle was subsequently owned by a person who was not registered as a motor vehicle dealer.

O_____ The Vehicle was previously used as a police cruiser or for emergency services.

O_____ The Vehicle was previously used as a taxi or limousine.

3. Prior Damage

O_____ The Vehicle previously sustained fire damage.

O_____ The Vehicle previously sustained damage by immersion in liquid that has penetrated to the level of at least the interior floorboards.

O_____ The Vehicle previously sustained structural damage.

O_____ The Vehicle had repairs, replacements, or alterations made to the structure of the Vehicle.

O_____ The Vehicle requires repair to one or more of the following: engine, transmission, or powertrain, subframe or suspension, computer equipment, electrical system, fuel operating system, or air conditioning. See additional information.

O_____ The total cost to repair the Vehicle due to prior damage exceeds $3,000 as a result of accident or incident. If known, the total cost for repairs is _____.

O_____ The Vehicle is equipped with an anti-lock braking system that is not operational.

O_____ The Vehicle's airbags are missing or not operational.

O_____ The Vehicle has two or more adjacent panels that are not bumper panels and that have been replaced.

O_____ The model year of the Vehicle is the current year or the year immediately preceding the current year, and panels have been repainted.

O_____ The Vehicle was declared a total loss by an insurer.

O_____ A badge on the Vehicle relates to a different model than the model of the Vehicle.

O_____ The manufacturer's warranty on the Vehicle was cancelled.

O_____ The Vehicle has been classified as "irreparable", "salvage" or "rebuilt". See additional information.

O_____ The Vehicle was recovered after it was reported stolen. See additional information.

O_____ The Vehicle was previously traded in a jurisdiction other than Ontario. See additional information. In the last 7 years, the Vehicle was:

- O_____ Registered in a jurisdiction other than Ontario
- O_____ Traded-in in a jurisdiction other than Ontario

Other jurisdiction _____.

O_____ The Vehicle was subject to a previous Repair and Storers lien.

O_____ The Vehicle is materially different from the original or advertised production specifications.

O_____ To the best of Seller/Lessor's knowledge, information and belief, none of the statements contained in this Part 3 apply to the Vehicle.

# TERMS AND CONDITIONS

1. **PRIVACY NOTICE**

The personal information collected on this form and on other documents relating to this transaction is collected in accordance with applicable privacy legislation and is governed by the Dealer's privacy policy. Such information is collected and used by the Dealer for and is necessary to: (i) sell or lease the Vehicle; (ii) provide products and services related to the Vehicle; (iii) assist the Buyer in the financing or lease of the Vehicle; (iv) provide service or repair the Vehicle; and/or (v) provide other information, products and services.

The Dealer may disclose the personal information collected to the Dealer's parent organization, if applicable, to enable the parent organization to: (i) administer the transaction; (ii) provide services such as warranties and extended service plans; (iii) administer customer notification programs; and/or provide the Buyer with other information, products and services.

Subject to the Buyer's consent to receiving updates and information unrelated to this transaction with the Dealer, by signing this Agreement, you consent to the collection, use and disclosure of your personal information for the foregoing purposes.

Contact the Dealer to obtain a copy of the Dealer's privacy policy, including information on how to access or request the correction of your personal information, or to ask a question about the collection, use and disclosure of your personal information.

2. **Definition of the Vehicle**

The Vehicle as described in this Agreement includes all accessories and additional equipment attached or installed on the Vehicle before or after the date of this Agreement. It furthermore includes any proceeds arising from any dealings in the Vehicle, including but not limited to all forms of personal property.

3. **Pollution Equipment**

The Vehicle as described in this Agreement includes all accessories and additional equipment attached or installed on the Vehicle before or after the date of this Agreement. It furthermore includes any proceeds arising from any dealings in the Vehicle, including but not limited to all forms of personal property.

4. **Distance Travelled**

The Dealer confirms that to the best of the Dealer's knowledge, the distance travelled by the Vehicle as shown on the face of this Agreement will be the odometer reading on the day the Vehicle is delivered to the Buyer. In the case of a trade-in vehicle, the Buyer confirms that to the best of the Buyer's knowledge the distance travelled by the trade-in vehicle is as shown on the face of this Agreement. The Buyer acknowledges that the Dealer is relying on the accuracy of same and agrees to indemnify the Dealer and hold the Dealer harmless from any losses, damages or other expenses caused by any inaccuracy or incorrect representation of same.

5. **Title**

The right and title to the Vehicle shall remain in the Dealer until the unpaid cash balance stated on the face of this Agreement is paid in full. The Buyer will not at any time suffer or permit any charge, lien or encumbrance to exist against the Vehicle until the unpaid cash balance stated on the face of this Agreement is paid in full. The Dealer reserves the right to repossess and to resell the Vehicle upon default of payment of the unpaid cash balance. The right and title of the Vehicle shall remain in the Dealer until all other sums owing by the Buyer to the Dealer according to these terms and conditions are paid in full to the Dealer.

6. **Transfer Documents**

The Buyer authorizes the Dealer to make all applications and obtain all permits required to transfer the Vehicle in accordance with this Agreement.

7. **Safety Standards Certificate**

The Buyer acknowledges that the motor vehicle permit for the Vehicle cannot be transferred to the Buyer unless the Buyer obtains a Safety Standards Certificate. The Buyer acknowledges that if the Buyer does not request a Safety Standards Certificate the Dealer will deliver the Vehicle with an Unfit Motor Vehicle Permit and the responsibility for removing the Vehicle from the Dealer's premises will be borne by the Buyer at the Buyer's own cost.

8. **Failure of Payment**

If any form of payment for any whole or partial amount due under this Agreement is dishonoured, refused or misrepresented, then such payment will be deemed to be unpaid. In the event of such occurrence, the Buyer and the Dealer agree that:

a. the unpaid payment is a breach of a fundamental terms of this Agreement and the Dealer is immediately released from any obligations under this Agreement;
b. the Dealer is entitled to immediate possession of the Vehicle as if the Dealer had never parted with possession of the Vehicle, and the Dealer may exercise all rights to possession;
c. the Buyer appoints the Dealer as the Buyer's lawful attorney to transfer title and ownership of the Vehicle to or to the order of the Dealer, and to execute all documents on behalf of the Buyer to transfer title and ownership of the vehicle; and
d. the Buyer will immediately reimburse the Dealer for all costs, charges and expenses incurred by the Dealer that arise out of such refusal, dishonour or misrepresentation including but not limited to all costs of taking possession, any reasonable cost of repairs, parts, lien payouts, handling and storage expenses, a reasonable selling commission and full indemnity for all legal costs.

9. **Entire Amount Due if Buyer Defaults**

Subject to clause 6 of this Agreement, if:

a. the Buyer defaults in the payment of any amount due or fails to comply with any requirement under this Agreement; or
b. any proceeding is commenced by or against the Buyer under bankruptcy or insolvency laws, then the entire amount due from the Buyer to the Dealer will become immediately due and payable at the option of the Dealer.

10. **Cancellation**

If the Dealer is unable to deliver the Vehicle within 120 days of the date of this Agreement for any reason through no fault of the Dealer, the Dealer will forthwith notify the Buyer on expiration of the 120 day period and this Agreement may be extended within 5 days of notification by mutual consent of the parties evidenced in writing. If the 5 day period has expired or on express notification by either party, this Agreement may be cancelled. Where this Agreement is so cancelled:

a. the Dealer will return any partial payment or deposit;
b. the Dealer will return the trade-in vehicle or other vehicle accepted as part payment or if such vehicle has been sold, the Dealer will pay the Buyer either:
   i. the net proceeds of the sale calculated as the actual selling price less the reasonable cost of repairs, parts, lien payouts, handling and storage expenses and a reasonable selling commission; or
   ii. the allowance for a trade-in vehicle or the value of a vehicle accepted as part payment as indicated in this Agreement,whichever is the lesser amount;

c. the Dealer's compliance with the requirements in subclauses (a) and (b) above will be a full release of any claims that the Buyer may have or claim to have against the Buyer resulting from such non-delivery, without any further or other releases from the Buyer.

11 **Acceptance of Delivery**

The Buyer agrees to accept delivery of the Vehicle and to comply with the terms of payment within seven days after notification to the Buyer that the Vehicle is ready for delivery. In the event that the Buyer does not so comply within seven days from the date of such notification, then the Dealer may charge his or her reasonable expenses (including loss of profit) to the Buyer in connection with this Agreement covering the Vehicle, and the Buyer hereby agrees to pay same. In addition to any other remedy which the Dealer may have against the Buyer for such expenses, the Dealer may set off such expenses against any deposit paid or any trade-in vehicle accepted as part payment or the proceeds therefrom if and when sold, and the Dealer shall be entitled to dispose of the Vehicle without any liability whatsoever to the Buyer.

# TERMS AND CONDITIONS (CONTINUED)

12. **Misrepresentation of Trade-In Vehicle**

In the event of any misrepresentation by the Buyer of any fact or matter relating to the trade-in vehicle as represented by the Buyer to the Dealer, either:

a. the Dealer may rescind this Agreement upon notification to the Buyer, and in such event:
   i. the Buyer shall return the Vehicle to the Dealer forthwith (and failing such forthwith return, the Dealer may repossess the Vehicle at the expense of the Buyer), and forthwith pay to the Dealer all reasonable costs, charges and expenses:
      I. for the use, repair and re-conditioning, if necessary, of the Vehicle; and
      II. of the Dealer to recover possession of the Vehicle and to restore, repair and recondition the trade-in vehicle; and
      III. for any other expenses of the Dealer arising out of the misrepresentation, and
   ii. upon receipt of the Vehicle and the monies referred to in subclause 8(a)(i), the Dealer shall return to the Buyer:
      I. the deposit paid, if any; and
      II. any trade-in vehicle accepted as part payment; or
      III. if such trade-in vehicle has been sold, the net proceeds therefrom based upon the actual selling price thereof less reasonable costs, repairs, handling and storage expenses and reasonable selling commission, or
b. the Dealer may reappraise the trade-in vehicle and upon such reappraisal may notify the Buyer of the difference between the value of the trade-in vehicle as stated in this Agreement and the value of the trade-in vehicle upon such reappraisal and upon receipt of such notification, the Buyer shall forthwith pay to the Dealer the amount of such difference.

13. **Trade-In Disclosures**

In the event that one or more of the provisions contained in this Agreement shall be invalid, illegal or unenforceable in any respect under any applicable law, the validity, legality or enforceability of the remaining provisions hereof shall not be affected or impaired thereby.

14. **Delivery of Trade-In Vehicle**

The Buyer agrees that if the trade-in vehicle accepted as part payment is not delivered to the Dealer on or before the execution of this Agreement, the Dealer may reappraise the trade-in vehicle upon actual delivery of such trade-in vehicle so as to ensure that there is no material change in the condition of such trade-in vehicle either physically or economically between the date of the signing hereof and the date of such actual delivery. In the event that, in the sole opinion of the Dealer, there is such a material change, the amount allowed for the trade-in vehicle shall be its reappraised value and the Buyer shall pay to the Dealer the difference between the amount for such trade-in vehicle stated in this Agreement and the amount of such reappraised value.

If the Buyer is not satisfied with such reappraisal, then the Buyer may cancel this Agreement and thereupon shall forthwith pay to the Dealer the Dealer’s reasonable costs, charges and expenses of an incidental to this Agreement, and failing such payment the Dealer may, in addition to any other rights and remedies the Dealer may have against the Buyer, set off such reasonable costs, charges and expenses against any deposit paid and against any other trade-in vehicle accepted as part payment.

15. **Title to Trade-In Vehicle Agreement**

The Buyer agrees to transfer title of the trade-in vehicle (if any) at such time and to such person as the Dealer shall specify, free and clear of all liens (other than as disclosed on the face of this Agreement).

16. **Financing & Payment**

The Buyer acknowledges that this Agreement is an agreement to purchase the Vehicle. If there is an unpaid balance, the Dealer's obligation to sell the Buyer the Vehicle is conditional upon financing for the unpaid balance. The Buyer will have two business days from the date of this Agreement to obtain such financing.

If financing is to be provided to the Buyer, the Dealer represents to the Buyer that the lender has complied with Section 79 of the Consumer Protection Act of Ontario, as amended, by providing the Buyer with the information that must be disclosed in any initial disclosure statement with respect to the financing. The Buyer authorizes the Dealer and the lender to check the Buyer's credit and that of any co-signer. The Buyer understands and acknowledges that any interest rate offered is On Approved Credit ("OAC") and is therefore subject to approval by the financing institution. The Buyer acknowledges that the rate of financing received will be decided by the financing institution and will be based on the Buyer's creditworthiness. The Buyer consents to a credit investigation and the exchange of credit information concerning the Buyer's personal credit history. The Buyer agrees that the Dealer may register a financing statement confirming the Dealer's interest in the Vehicle to the extent that any such interest exists. The Dealer may register any financing or financing change statement made hereunder for a period up to the term of this Agreement plus one year. Where the law permits, the Buyer waives the Buyer's rights to sign or receive a copy of any financing, financing change or verification or confirmation statement in connection with this Agreement. The Buyer agrees that copies of any documents which are required to be sent to the Buyer pursuant to the Personal Property Security laws of Ontario may be sent by ordinary mail.

17. **Leasing**

If leasing is to be provided to the Buyer, the Dealer represents to the Buyer that the lease service provider has complied with subsection 89(2) of the Consumer Protection Act of Ontario by providing the Buyer with the information that must be disclosed in any initial disclosure statement with respect to the lease.

18. **Late Payments, NSF Charges & Interest**

If the Buyer pays the Dealer with a cheque that is dishonoured or unpaid for any reason, the Dealer may, at the Dealer's sole option, declare this Agreement null and void and retake the Vehicle, or make claims against the Buyer on the cheque. In addition, to the extent permitted by law, the Dealer will charge the Buyer a $24.00 returned cheque charge.

19. **WARRANTIES**

ALL WARRANTIES, IF ANY, BY A MANUFACTURER OR SUPPLIER OTHER THAN THE DEALER ARE THEIRS, NOT THE DEALER'S. ONLY SUCH MANUFACTURER OR OTHER SUPPLIER SHALL BE LIABLE FOR PERFORMANCE UNDER SUCH WARRANTIES, UNLESS THE DEALER FURNISHES THE BUYER WITH A SEPARATE WRITTEN WARRANTY OR SERVICE CONTRACT MADE BY THE DEALER ON ITS OWN BEHALF. THE DEALER NEITHER ASSUMES NOR AUTHORIZES ANY PERSON TO ASSUME FOR IT ANY LIABILITY IN CONNECTION WITH THE SALE OF ANY PRODUCTS.

UNLESS THE DEALER MAKES A WRITTEN WARRANTY ON ITS OWN BEHALF, OR ENTERS INTO A SERVICE CONTRACT WITHIN 90 DAYS FROM THE DATE OF THIS ORDER, THE DEALER MAKES NO WARRANTIES ON THE VEHICLE EXCEPT AS REQUIRED BY LAW. THIS PROVISION DOES NOT AFFECT ANY WARRANTIES COVERING THE VEHICLE THAT THE MANUFACTURER OR SUPPLIER MAY PROVIDE.

20. **Changes in Tax Payable**